CONSTITUTIONAL LAW — LECTURE NOTES

Part A: Directive Principles vs Fundamental Rights | Part B: Article 21 — Life, Personal Liberty & "Procedure Established by Law"

Abbreviations: FR = Fundamental Rights (Part III) • DPSP = Directive Principles of State Policy (Part IV) • PEBL = Procedure Established by Law • SC = Supreme Court. **Colour key:** teal/purple = core law • **yellow boxes with *italics*** = professor's informal remarks • **green** = lecture questions answered • **red** = accuracy corrections.

Left out of these notes: the professor's party-political remarks and remarks aimed at individual students. Article 20 was deliberately skipped in the lecture (to be taken later); the lecture moved straight to Article 21.

PART A — DIRECTIVE PRINCIPLES vs FUNDAMENTAL RIGHTS

The big picture. The lecture opened by revising how the Supreme Court has handled a clash between FRs and DPSPs. The journey runs from "**FR above DPSP**" (*Champakam Dorairajan*) to "**FR and DPSP are complementary and must be harmoniously construed**" (*Minerva Mills*). The Constitution is founded on the **balance** between Part III and Part IV, and neither gets absolute primacy — they are the "**two wheels of the same chariot**".

EXAM TRAP

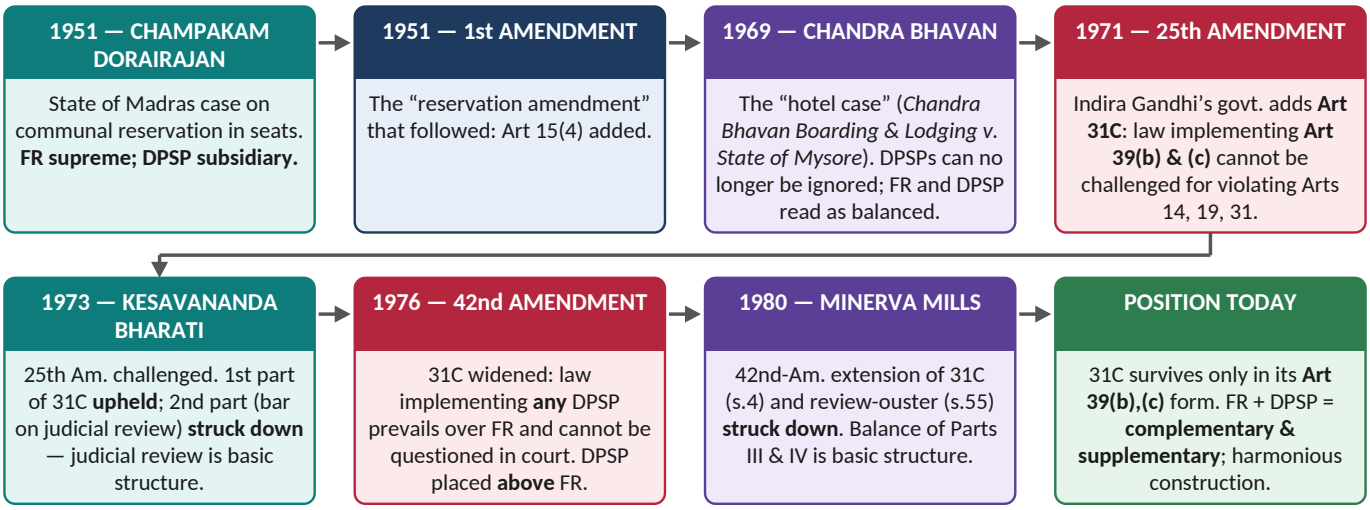
Do **not** write "*in certain cases Fundamental Rights must be given priority*". *Minerva Mills* does not say that; it says harmonious construction / balance. The professor said this one sentence earns **zero**.

A.1 Why did the conflict arise? — Articles 32 and 37

	Article 32	Article 37
Says	Right to Constitutional Remedies: a fundamental right to approach the Supreme Court for enforcement of any FR in Part III.	DPSPs are **not enforceable by any court**, though they are "fundamental in the governance of the country".
Nature	**Justiciable** — courts can enforce it.	**Non-justiciable** — courts cannot enforce it.

Logic of the early view: if a dispute reaches court, the court enforces what is justiciable → something justiciable (FR) cannot be overridden by something non-justiciable (DPSP) → FRs get primacy; DPSPs are **subsidiary** to FRs. The confusion was about **reservation** (communal quota in college seats), **not** about the right to property.

A.2 Flowchart: how the Court's position evolved



Art 39(b) & (c) in one line: (b) community resources distributed to serve the common good; (c) the economic system must not concentrate wealth and means of production in a few hands. **Why 31C had to be an insertion:** an amendment does not stand alone as "the law" (unlike the USA); it must add or change something in the text — the 25th Amendment did so by inserting **Art 31C**.

PROFESSOR'S INFORMAL ASIDES (in italics, as said in class)

- ***Marks policy:*** *"While reading answers, if I see even one poor sentence, marks are cut." Don't read notes aloud when asked a question — "use your brain."*
- ***How he knows article numbers:*** *as a game, he asked his 3–4-year-old son to open "page 753"-type pages and read the article numbers; the boy could do it, so "even a child can read from the book — recall it without looking."*
- *On students answering from notes: "Are you attending my class for the first day?" Understand the **thought process** behind the cases, not only the names.*
- *Quip on assignments: reading only for the Family Law project is not enough — Constitutional Law cases (e.g. the hotel case) were compulsory reading.*

A.3 Case notes in more detail

Case	Facts / issue	Holding & consequence
State of Madras v. Champakam Dorairajan (1951)	A communal Government Order allotted seats in State colleges by community. The State defended it by pointing to a DPSP (Art 46, protecting weaker sections); the petitioner relied on the FR against denial of admission on grounds of religion, race, caste or language (**Art 29(2)**).	The order was struck down. The Court held DPSPs **cannot override** FRs and must "run as subsidiary" to them. **Result:** Parliament responded with the **1st Amendment** (Art 15(4)).
Kesavananda Bharati v. State of Kerala (1973)	Challenge to the 24th and 25th Amendments, including the new **Art 31C**.	Landmark **basic structure** ruling. 31C's first part (immunity from Arts 14, 19, 31 for 39(b)/(c) laws) **survived**; its second part, which shut out courts, was **struck down** because judicial review is basic structure.
Minerva Mills v. Union of India (1980)	Challenge to the 42nd Amendment: **s.4** (31C extended to all DPSPs) and **s.55** (Art 368(4),(5): amendments beyond judicial review).	Both struck down. The Constitution rests on a **balance between Parts III and IV**; giving absolute primacy to either upsets that harmony. Hence "complementary and supplementary", "two wheels of the same chariot".

KEY TAKEAWAY — PART A

Memory chain: Champakam (FR > DP) → 25th Am. + 31C (DP > FR, only for 39(b),(c)) → Kesavananda (trims 31C) → 42nd Am. (31C for *all* DPSPs) → Minerva Mills (back to **balance**). Whenever a question asks "what is the present position?", the answer is **harmony, not priority**.

PART B — ARTICLE 21: LIFE, PERSONAL LIBERTY & PROCEDURE ESTABLISHED BY LAW

ARTICLE 21 — THE TEXT

"No person shall be deprived of his life or personal liberty except according to procedure established by law."

Only one line long, yet the professor called it among the most important articles: "hardly anybody is conceptually clear on this" — even in interviews and selection committees up to Professor level. He asked students to **stop writing and just listen**. Four ideas must be understood:

1. "NO PERSON" → Every **person** — citizens **and** foreigners (e.g. Kasab). Generally human beings only, **not corporates**.

2. "LIFE" → From bare survival → **"more than mere animal existence"** — everything that makes life meaningful.

3. "PERSONAL LIBERTY" → From freedom from physical restraint → **widest meaning**: all liberties not already covered by Art 19(1)(a)–(g).

4. "PROCEDURE ESTABLISHED BY LAW" → Gopalan: any validly enacted law. Maneka Gandhi: procedure must be **just, fair & reasonable** (due-process flavour).

B.1 "No person" — and against whom does Art 21 work?

Kasab example: when caught in Mumbai he was not shot or hanged on the spot; the procedure established by law was followed (trial, appeals) — because Art 21 protects **everybody**, including aliens and Pakistani nationals.

	VERTICAL (traditional view)	HORIZONTAL (modern view)
Against	The **State** only. The State is the most powerful actor (money, ED, CID, police), so Art 21 restrains it. If a private person attacks you, the State must act to protect you; you cannot take the law into your hands — go to the constitutional courts.	Also **private persons and entities** (e.g. Facebook, X, LinkedIn) — they cannot violate your FR, especially **dignity**. Because telling the State to act may be ineffective, rights bite directly.
Authority	Long-standing position.	**Kaushal Kishor v. State of U.P.** (3 Jan 2023), 5-judge Constitution Bench, 4:1. Justice **B.V. Nagarathna** (partly dissenting) wrote separately. **Compulsory reading** — expect an exam question.

Remedy when an FR is violated — flow:

FR VIOLATED → Right to life/liberty infringed (by State or, now, a private party).

WRIT PETITION → Art 32 (Supreme Court) / Art 226 (High Court).

COMPENSATION v. STATE → *Rudul Sah* (1983): money compensation for FR violation — original loss can't be undone, but money gives relief.

PRIVATE PARTY PAYS → *Bodhisattwa Gautam v. Subhra Chakraborty* (1996): first clear horizontal step. Also *M.C. Mehta* (1986/87): absolute liability.

PROFESSOR'S INFORMAL ASIDES (in italics, as said in class)

- ***Song analogy:*** *"paani jo aag lagaaye, use kaun bujhaaye" — water's job is to put out fire; if water itself starts the fire, who will put it out? Likewise, if the* ***State*** *(the protector) violates rights, who protects us? Hence Art 21 restrains the State first.*
- ***Classroom example (compensation):*** *a student is suspended for two years on fake election-violence evidence, wins in the High Court — but two months of classes are lost. Those lectures and that atmosphere can never be recreated; compensation is the only partial remedy.*
- ***M.C. Mehta*** *(Oleum gas leak): the SC directed the enterprise to deposit* ***Rs 20 lakh*** *(plus Rs 15 lakh bank guarantee) — the "20 lakh" the professor cited.*
- *On Nagarathna J.: she is slated to become the first woman Chief Justice of India, "so a question on her name should definitely be asked." A student (UID "1, 2, 8") must download the full judgment, circulate it to the batch and cc the professor.*

B.2 "Life" and "Personal Liberty" — how the meaning grew

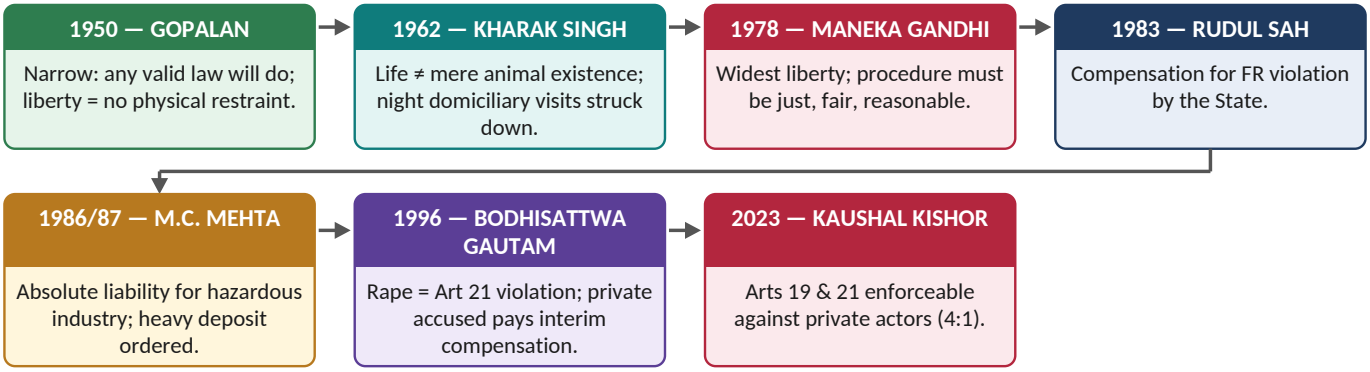
Case	Year	What happened / what the Court held
A.K. Gopalan v. State of Madras	1950	A Communist leader and sitting MP was held under **preventive detention**. The Court gave **life** and **personal liberty** a very narrow meaning (bare existence; no physical restraint) and treated PEBL as **any law passed by the legislature** — if a law exists, "I cannot help."
Kharak Singh v. State of U.P.	18 Dec 1962 (6 judges)	Accused in a dacoity case (released for want of evidence) and placed under police surveillance (UP Police Regulations, Reg. 236); police made night **domiciliary visits** to check whether he was home. The Court struck down the night visits as violating Art 21 and said life is **"not mere animal existence"**, a sentence borrowed from the US case **Munn v. Illinois** (1877). First step away from Gopalan.
Maneka Gandhi v. Union of India	1978	Passport impounded without reasons or notice. Personal liberty has the **widest amplitude** — it covers rights **not** in Art 19(1)(a)–(g); procedure must be **just, fair and reasonable**. Gopalan's narrow reading was abandoned (the 1980s expansion by Justice Bhagwati and others was promised for a later lecture).

Examples the professor listed under "meaningful life / liberty": sleep, reading newspapers, giving a TV interview, no needless handcuffing, water, roads, freedom to love, choice of food, dress and movement.

PROFESSOR'S INFORMAL ASIDES (in italics, as said in class)

- ***Kharak Singh's story:*** *a habitual-offender type; police arrived at night to check "is he home or out committing a crime?", waking the family (the "every two hours" detail is the professor's own guess). Pronounce it correctly: "****domiciliary*** *visit".*
- ***Spelling matters:*** *it is* ***Maneka*** *Gandhi (not Menaka). "I don't deduct marks, but between 9.5 and 10, I give 10 to the careful student."*
- ***Dress and personal liberty:*** *because Art 21 covers what you wear, eat and where you go, he said he refrains from commenting on student attire; he added that dress and language traditionally suited the "character" (Premchand's Mantra: educated Dr. Chadha vs. the old peasant). A student objected that clothes shouldn't be used to judge people; he replied he was not acting on it.*
- *On Gopalan: he noted that the country was newly independent and the Supreme Court of that time also took the narrow view "for a reason" — promised for a later lecture; he also remarked that Gopalan was no ordinary person but a Member of Parliament.*

Timeline of Art 21 as seen in this lecture:



B.3 Procedure Established by Law (PEBL) vs Due Process of Law

Flowchart: where each phrase came from

MAGNA CARTA (1215) → Barons' charter against the king: no punishment except by lawful judgment of one's peers / law of the land — a **restraint on royal power**.

ENGLAND → Law-making needed proper procedure, the king's council, a local **jury** (community standards, facts). After **1688** (Glorious Revolution) **Parliament is supreme** → PEBL.

USA → **Due process** (5th/14th Amendments): judges test the **quality** of laws → powerful judiciary → **Lochner era**.

JAPAN (1946–47) → Constitution drafted under US occupation uses **PEBL**.

B.N. RAU + FRANKFURTER → India's constitutional adviser consults US Justice **Felix Frankfurter**: avoid "due process" — it hands judges too much power over the people's representatives.

INDIA: ART 21 → Framers adopt **PEBL**.

GOPALAN (1950) → Court checks only whether **a law exists**.

MANEKA GANDHI (1978) → Procedure must be **just, fair, reasonable** → due process in effect.

	Procedure Established by Law	Due Process of Law
Who is supreme?	Parliament / legislature ("upper hand").	Judiciary ("upper hand").
Court checks	Only whether the implementing agency **followed the prescribed procedure**.	The procedure **and the quality / reasonableness of the law** itself.
Exam analogy	"Was an exam actually held?"	"Was there due notice, a proper gap, and enough time — or 10 questions in 3 minutes?"
Risk	Partisan law-making goes unchecked.	Judicial overreach (Lochner).
In India	Text of Art 21; *Gopalan* (1950).	Read in through *Maneka Gandhi* (1978).

CASE FILE: THE LOCHNER ERA

Lochner v. New York (1905): the US Supreme Court struck down a New York law capping bakers' working hours, on the ground of "**freedom of contract**" / laissez-faire under due process. Many welfare laws (hours, wages, children) fell in this "**Lochner era**". It ended around 1937: President **F.D. Roosevelt** threatened "**packing the Court**" — adding sympathetic justices (one per justice over 70) — and the justices began reading due process more liberally.

WHY "JUST, FAIR AND REASONABLE" MATTERS

After *Maneka Gandhi* the Court reads **Arts 14, 19 and 21 together** (the "golden triangle"): a law that touches life or liberty must be procedurally fair, non-arbitrary and, where Art 19 is engaged, reasonable. *Added context — not stated in the lecture; included to explain why PEBL now behaves like due process.*

PROFESSOR'S INFORMAL ASIDES (in italics, as said in class)

- ***Why he likes due process:*** *"everyone is a little selfish; when I get power I will favour my supporters" — legislators fight elections, **judges do not**, so they judge laws more neutrally. Due process and the **basic structure** doctrine are "good", even if judges adopted them for their own reasons.*
- ***Don't make bad laws while in power — they may bite you:*** *the Passport Act was made in Indira Gandhi's time, yet when it was used against Maneka Gandhi, she ("the daughter-in-law") was caught by it; the Court asked for reasons and a hearing.*
- ***Freedom to contract, mocked:*** *if everything is "contract", a rich man can make a poor man pull a hand-rickshaw in Calcutta — the exploitation the laws tried to stop (18-hour days, no minimum wage, no age limit).*
- ***Jury trivia:*** *jurors were local people who decided facts by community standards; the case that ended jury trials in India is **K.M. Nanavati** (a student named Ileana D'Cruz as the heroine of the film version, Rustom).*
- *Presentation task: a student must present on the **Lochner era** "tomorrow". Attendance must be sent within 10 minutes of class.*

ONE-PAGE REVISION CAPSULE

Topic	Remember this
FR vs DPSP	Early: FR over DPSP (1951). Now: balance and harmonious construction (Minerva Mills, 1980). Never write "FR get priority in certain cases".
Art 31C	Inserted by the 25th Am. (1971) for Art 39(b),(c); widened by the 42nd (1976); widening struck down in 1980; review-ouster struck down in 1973.
Art 21 text	"No person … life **or** personal liberty … except according to procedure established by law."
Scope	Any person (not corporates); State (vertical) **and** private actors (horizontal — *Kaushal Kishor*, 2023).

Topic	Remember this
Life	*Gopalan* 1950 (narrow) → *Kharak Singh* 1962 (more than animal existence; *Munn v. Illinois*).
Personal liberty	*Gopalan* (physical restraint) → *Maneka Gandhi* 1978 (all liberties outside Art 19(1)(a)–(g)).
PEBL vs due process	PEBL: court checks procedure only (legislature supreme). Due process: court also tests the law's quality (judiciary supreme). *Maneka* brought due process in by the back door.
Lochner era	US courts used "freedom of contract" to strike welfare laws; ended by FDR's 1937 court-packing threat.

LECTURE QUESTIONS — ANSWERED

Question asked in class	Answer
What was the SC's view of an FR–DPSP conflict at the start of the Republic?	FRs prevail; DPSPs are subsidiary — *State of Madras v. Champakam Dorairajan* (1951).
Why did the conflict arise? Which two articles?	Art 32 (FR enforceable in the SC) vs Art 37 (DPSPs not enforceable by courts); justiciable vs non-justiciable. It concerned reservation, not property.
Name the "hotel case".	*Chandra Bhavan Boarding & Lodging v. State of Mysore* (1969).
What did the 25th Amendment do, and where?	Inserted **Art 31C**: laws to implement Art 39(b)/(c) cannot be held void for violating Arts 14, 19, 31.
Which case challenged it? Upheld or quashed?	*Kesavananda Bharati* (1973): **partly upheld** (immunity of 31C) and **partly struck down** (clause barring judicial review).
Which amendment put all DPSPs above FRs, and what happened?	42nd Amendment (1976); *Minerva Mills* (1980) struck down that extension (and s.55); harmonious construction restored.
Who can claim Art 21? Against whom?	Every "person", citizens or not (Kasab); not corporates. Traditionally against the State; now also private actors — *Kaushal Kishor* (2023).
Remedy for violation of an FR?	Writ under Art 32/226; compensation — *Rudul Sah* (1983); private party liable — *Bodhisattwa Gautam* (1996, the year the student gave).
Case giving "life" a narrow meaning? First liberal case? Source of the "animal existence" line?	*A.K. Gopalan* (1950); *Kharak Singh* (1962); *Munn v. Illinois* (USA).
Case that widened "personal liberty"?	*Maneka Gandhi* (1978).
Who advised B.N. Rau on "due process"? Who "packed the Court"? Which case is "Lochner"?	Justice Felix Frankfurter; F.D. Roosevelt; *Lochner v. New York* (1905).

ACCURACY CORRECTIONS (where the spoken lecture slipped)

As said in the lecture	Correct position
Art 21 read as "life *and* personal liberty"	The text says "life **or** personal liberty".
Student: Art 37 means DPSPs "not enforceable by the State"	DPSPs are not enforceable **by any court**.
Early FR-over-DPSP view dated "1950"	*Champakam* was decided in **1951**.
25th Am.: laws can't be challenged for violating "Fundamental Rights"	Only for violating **Arts 14, 19 and 31** (Art 31 was later repealed).
Minerva Mills: 42nd Amendment "totally unconstitutional"	Only **s.4** (31C extension) and **s.55** (Art 368(4),(5)) were struck down.
Kharak Singh "1963 / seven judges"	Decided **18 Dec 1962** (AIR 1963 SC 1295) by a **six-judge** bench; only domiciliary visits were struck down.
Magna Carta "Article 39 has due process of law"	Clause 39 speaks of "**law of the land**"; the words "due process of law" appear in a statute of **1354**.
Lochner "1903", child-labour/18-hour laws	*Lochner* is **1905** and concerned bakers' hours; child-labour laws fell in other cases.
FDR to add "three" judges	His 1937 plan: up to **six** extra justices (one per justice over 70); the Court has nine.
Nagarathna's view prevailed	*Kaushal Kishor* majority (4:1) held Arts 19/21 enforceable against private actors; **she partly dissented**.
Maneka Gandhi decided "to save Indira Gandhi"	Passport Act, 1967; passport impounded in **1977 under the Janata government**; the Court tested fairness of procedure.
Bodhisattwa Gautam: aside on the scholar's conduct	Holding: **rape violates Art 21**; accused (a private person) ordered to pay interim compensation. The aside is not part of the ratio.